



RELEASE AND CONSENT FOR USE OF IMAGES/VIDEOS

PARTICIPANTS IN A TRIP – WE ROADERS

The undersigned

Name and surname	
Date and place of birth	
E-mail	
Telephone	

Whereas

- WeRoad Italia S.r.l., with registered office in Milan, Viale Cassala, 30, 20143, Fiscal Code and VAT No. 12474100968 (the "**Company**"), is the organizer of the trip in which the undersigned participates ("**Trip**").
- During the course of the Trip, the Company may capture video and/or images of the participants, including the undersigned and image and voice (the "**Images**").
- **THE COMPANY INTENDS TO USE THE IMAGES FOR PROMOTIONAL AND ADVERTISING PURPOSES OF THE COMPANY ITSELF AND OF ITS ACTIVITY, AND IN PARTICULAR IN ORDER TO CARRY OUT ADVERTISING CAMPAIGNS ON VARIOUS MEDIUMS, BROADCAST IN TV COMMERCIALS, FOR BILLBOARDS IN DIFFERENT CITIES IN THE ITALIAN TERRITORY AND ABROAD, ON ITS SOCIAL CHANNELS (INSTAGRAM, FACEBOOK, TIKTOK), ON ITS WEBSITE.**
- The signer of this release (the "**Release**") agrees to the Company's use of the Images for such purposes and intends to formalize authorization for the collection and use of the same and therefore

hereby

free of charge, without time limit, including pursuant to Article 10 of the Civil Code and Articles 96 and 97 of Law No. 633/1941 (the so-called "Copyright Law")

AUTHORIZES THE COMPANY

1. to use, disseminate, reproduce, process, modify, publish, communicate to the public, transmit his/her portrait and his/her personal image and voice contained in the Images shot during the Trip for promotional and information purposes pursued by the Company - on any and all media, without time or space/territorial limits - including:
 - the Company's website, the Company's social channels, including Facebook, Instagram, Tik Tok;
 - campaigns and commercials, also to be broadcasted on television;
 - both digital and print presentations of the Company;
 - out-of-home campaigns in Italy and abroad and billboard postings in various Italian and foreign cities;He/she also assigns all rights of any kind and nature existing on the Images necessary for the exploitation for commercial, promotional and advertising purposes described above;
2. to keep the Images in the Company's computer archives and acknowledges that the purpose of such publications is informative and promotional. This disclaimer may be revoked at any time by written notice to be sent by registered mail to the registered office of the Company or in the manner indicated in the Privacy Policy under the section "Rights of the Data Subject".

DECLARES

3. to be fully satisfied and to have nothing to claim for any reason or title whatsoever from the Company, its assignees and/or successors in title and/or in general from anyone who uses and exploits the Images with reference to the subject matter of this Release and, therefore, to the provisions of the point 1, undertaking also for the future not to raise any exception, claim, demand or dispute in this regard and, so far as may be necessary, irrevocably waiving any right, action or claim in connection with the payment of consideration or indemnity whatsoever by reason of the foregoing;
4. that he/she is the full owner of the rights herein, that he/she has not granted any rights to third parties that are incompatible and/or in conflict with the aforementioned rights, and that the participation in the Trip and the making of the Images does not violate any laws, regulations, or the rights of third parties;
5. to indemnify the Company and/or its successors in title against any liability, cost, claim, expense, and/or claim of third parties with respect to the Images and their exploitation, assuming all related liability on its sole responsibility;
6. to take note of the information regarding the processing of Personal Data, pursuant to the European Privacy Regulation 679/2016, attached hereto and to

☐ **I CONSENT**

☐ **I DO NOT CONSENT**

to the processing and dissemination, for promotional purposes, of my image and portrait contained in the Images, possibly individually linked to my Biographical Data, through publication, dissemination and transmission by various means (over the air and/or satellite and/or cable, television advertising, commercials, billboards, internet, editorial advertising, social networks such as, but not limited to, Facebook, Instagram, TikTok) as better indicated above. Consent may be revoked at any time. Withdrawal of consent does not affect the lawfulness of processing based on consent prior to withdrawal.

Under no circumstances does this release permit the use of the Images in contexts or ways that harm the honor, reputation, and decorum of the person filmed.

SIGNATURE (Place)

(Date)

The Declarant(s)

ANNEX A – Privacy Policy

Privacy policy pursuant to and for the purposes of Articles 13/14 Regulation (EU) 2016/679 (GDPR)

	DATA CONTROLLER WeRoad Italia S.r.l., a company belonging to the OneDay group, which has its registered office in Milan, Viale Cassala, 30, 20143, Fiscal code and VAT number 12474100968 (and which from now on we will refer to as "WEROAD" or "Controller"). Contacts: • e-mail privacy@weroad.it • via mail Viale Cassala n. 30 – 20143 Milano.
	CATEGORIES OF PROCESSED DATA - Personal data (first name, last name, place and date of birth, residence) and contact data (phone number and e-mail address) collected directly from the Data Subject who signs the Release - Photos and/or videos, images and voice (the "Images") portraying the Data Subjects, collected during the Trips and that could allow to identify the Data Subjects ("Data")

Purposes of the processing	Legal basis	Nature of the provision of Data	Data retention period
Content production and use For broadcasting and transmitting the Images by various means (over the air and/or satellite and/or cable, television advertising, commercials, billboards, the Internet, social networks, editorial advertising) for promotional purposes, including with individual linkage between the Data Subjects' identification Data and the Images.	Express consent to the processing of Personal Data (Art. 6(1)(a) GDPR).	Optional. In the event of failure to provide the Data, there will be no prejudice to the Data Subject and the Images will not be disseminated or transmitted. It is possible to revoke the consent given at any time by sending an e-mail to privacy@weroad.it	The Controller will no longer use and delete processed Personal Data upon revocation of consent or when no longer relevant to the promotion of the Trip (maximum 5 years from publication). If the Images are disseminated on the Controller's social pages, the Controller will only remove the Images from such platforms once it is deemed no longer relevant to the promotion of the Trip or in case of revocation of consent by the Data Subject, but will not be able to request their deletion from third parties who have disseminated them in the meantime. On the other hand, the removal of the Data Subject's image from commercials and billboards will not be possible.
The Controller may retain Personal Data to comply with the law or to exercise or defend any right or claim in legal proceedings. Once the purposes for which Personal Data was collected and processed have been achieved, the Controller will implement appropriate measures to anonymize it so that the data subject cannot be identified.			

	RECIPIENTS/CATEGORIES OF DATA RECIPIENTS The Data will be processed by duly appointed employees of the Controller who are expressly authorized to process the Personal Data based on instructions and taking appropriate measures to protect the Data in relation to all of the above purposes. The following entities may become aware of Personal Data in connection with the processing purposes set forth in this Privacy Policy and may process Personal Data either as autonomous data controllers or as processors duly appointed by the Controller (the list of such controllers and autonomous data processors is available upon request by e-mail to be sent to privacy@weroad.it): - companies that carry out activities to support the realization of the Images (e.g., videomakers, photographers, etc.); - entities that carry out activities functional to the achievement of the above purposes, i.e. companies that provide IT infrastructure and IT support and consulting services, companies that provide data analysis and development services, as well as law firms, accountants and auditing firms; - insurance companies, insurance brokers; - companies of the OneDay group, of which the Controller is a member. Data may be disclosed to the Judicial, Public Security or other Public Authority to fulfill orders or requests delivered by them.
	DATA TRANSFER TO A COUNTRY OUTSIDE OF THE EU Personal data will not be transferred to countries outside the EU. The Controller cannot predict in advance in which countries the Images posted on social networks and/or via YouTube will be visible, but will take care to use platforms and channels that are claimed to be compliant with the requirements of the GDPR, to whose privacy policies please refer. The Controller undertakes to transfer personal data to third countries, if necessary: - ensuring that the country to which personal data will be sent guarantees an adequate level of protection, as required under Article 45 of the GDPR; or - complying with the standard contractual clauses approved by the European Commission for the transfer of personal information outside the EEA (these are clauses approved under Article 46 (2) of the GDPR).
	DATA PROCESSING METHODS The Data will be processed in accordance with the principles of correctness, lawfulness and transparency, through manual and automated methods and through the use of paper and electronic means, in any case within the limits of the purpose(s) of the data processing(s) established by this policy and, in any case, always ensuring the security and confidentiality of the Data.
	DATA SUBJECT RIGHTS You may at any time exercise the following rights under the conditions and within the limits of Articles 12-22 of the GDPR by sending an email to privacy@weroad.it - Right of access (Article 15 GDPR); - Right to rectification of inaccurate personal data and to obtain supplementation of incomplete personal data (Article 16 GDPR); - Right to erasure of personal data (Article 17 GDPR); - Right to restriction of processing (Article 18 GDPR); - Right to object to processing under Article 6(1) (e) or (f) of the GDPR, including profiling (Article 21 GDPR); - Right to lodge a complaint with the supervisory authority (Article 77 GDPR). In the event that the data subject believes that the Controller's processing of personal data is in violation of the provisions of Regulation (EU) 2016/679, the data subject has the right to lodge a complaint with the Supervisory Authority, particularly in the member state where the data subject normally resides or works or in the place where the alleged violation of the Regulation occurred (in Italy, the Garante Privacy https://www.garanteprivacy.it/), or to take appropriate legal action.
Notwithstanding the above, you may revoke at any time the consent you have given for the dissemination and transmission of Images and for the receipt of Images at the contact details indicated in the release.	
February 2023	